CORAM: HIS WORSHIP MAWUKOENYA NUTEKPOR (DISTRICT MAGISTRATE), SITTING AT THE DISTRICT COURT, BOLGATANGA IN THE UPPER EAST REGION OF GHANA, ON MONDAY, THE 28TH DAY OF APRIL, 2025.

SUIT NO. UE/BG/DC/A1/5/2024

IBRAHIM AZOTIYINE **PLAINTIFF**

OF H/NO. S86, SOKABISI-BOLGATANGA
(SUING FOR HIMSELF AND ON BEHALF OF MBANGAMA HOUSEHOLD OF THE AZOTIYINE FAMILY OF SOKABISI)

VRS.

AZOTIYINE BRENDA A. **DEFENDANT**
OF H/NO. S186, SOKABISI-BOLGATANGA

TIME: 09:00AM

PLAINTIFF ABSENT BUT REPRESENTED BY ISAAC AZOTIYINE

DEFENDANT ABSENT BUT REPRESENTED BY ADAMUNA AYAMGA

RICHARD ADONGO, ESQ. FOR PLAINTIFF

NO LEGAL REPRESENTATION FOR THE DEFENDANT

JUDGMENT

Introduction

1. This action was commenced on 2nd May, 2024. By an amended writ of summons filed on 4th June, 2024, the plaintiff claims against the Defendant as follows: -

    a. A declaration of title to all that unnumbered piece or parcel of land situate and located at Zorbisi, along Navrongo-Bolgatanga trunk road and close to the New Life line drinking spot which is bound to the North by the

Navrongo-Bolgatanga trunk road; to the South by the New Life line drinking spot; to the West of Atopali's land and to the East by Aberi's lotto kiosk and measuring more or less 60 by 60 feet.

b. Possession of all that piece of land described above.

c. Perpetual injunction against the Defendant and all her assigns and all claiming the disputed land through the Defendant.

d. Cost, including the cost of prosecuting this suit.

2. On 15th May 2024, this court in consideration of the nature of the case, the fact that the parties are relatives and the willingness of the parties to attempt settlement of the matter out of court, referred the matter to the Court Connected Alternative Dispute Resolution pursuant to **section 72 of the Courts Act, 1993 (Act 459)** as amended. The said section provides as follows:

Section 72—Courts to Promote Reconciliation in Civil Cases

(1) Any court with civil jurisdiction and its officers shall promote reconciliation, encourage and facilitate the settlement of disputes in an amicable manner between and among persons over whom the court has jurisdiction.

(2) When a civil suit or proceeding is pending, any court with jurisdiction in that suit may promote reconciliation among the parties, and encourage and facilitate the amicable settlement of the suit or proceeding.

See also **Order 25 Rule 1 sub rules (3) to (8) of the District Court Rules, 2009 (C.I 59) as amended by C.I. 134.**

However, the parties could not resolve the matter out of court; hence the court proceeded to determine the matter on its merit.

Plaintiff's Case

3. The plaintiff avers that the disputed land was owned by his great grandfather by name Awuliba Gaya-Baah. The Plaintiff says that the said Awuliba Gaya-Baah owned several pieces of land in and around the Zorbisi area. The Plaintiff says that Awuliba Gaya-Baah in his lifetime allowed his wife and children to cultivate a large tract of land in and around the disputed land, including the disputed land, to augment the feeding of the household.

4. The Plaintiff says that after the demise of Awuliba Gaya-Baah, Anyeana succeeded him as the head of the family and also held all family property including lands in trust of the family. The said Anyeana was Plaintiff's grandfather. The Plaintiff says that after the death of Anyeana, he (Anyeana) was succeeded by Azotiyine as the head of Plaintiff's family. The said Azotiyine is Plaintiff's father. The Plaintiff says that in the lifetime of Azotiyine, he had 3 wives and Plaintiff's mother was one of Azotiyine's wives. The Plaintiff says that before Azotiyine died, he divided some of the family lands including the disputed land, amongst his three wives for use by each wife to use for her household and her children. The Plaintiff says that the disputed land and its

immediate environs were given to the Plaintiff's mother for herself and her children.

5. The Plaintiff says that between the late 1970s and early 1990s, the Plaintiff's household cultivated household crops such as groundnuts and Bambara beans on the land. The Plaintiff says that he and his family only stopped farming on the land when people begun requesting for and using portions of the disputed land for commercial activities.

6. The Plaintiff says that around the year 1994, the Plaintiff's family granted an area around the disputed land to one Alhaji Agmane for use as a provision shop. The said Alhaji yielded vacant possession of the land to the Plaintiff's family in the year 2021. Alhaji's spot was adjacent the Defendant's place. The Plaintiff says that around the year 1997 Apogrege requested a portion of land of the area around the disputed land for the use of his boss's wife by name Madam Regina. The said Madam Regina used the place as a provision shop. The said Regina vacated the place in the year 2014. The Plaintiff says that it was the place occupied by madam Regina that the Plaintiff was subsequently given the permission to temporarily occupy.

7. It is the plaintiff's case that in or around the year 2015, the Defendant approached the Plaintiff's father, Azotiyine, requesting for a portion of the disputed land to cite her metal container to start a business. The Plaintiff says that after the request, Azotiyine informed some of his household members about the Defendant's request. The persons are: Azotiyine Isaac Ayine (Plaintiff's cousin), Azotiyine Robert (Plaintiff's elder brother) and Azotiyine Kofi

(Plaintiff's younger brother). The Plaintiff says that Azotiyine had informed the person *supra* that the Defendant was to occupy the disputed land until such a time the Plaintiff's family required the place for their own use. The Plaintiff says that since the year 2022, several verbal requests were made to the Defendant to yield vacant possession of the disputed land but all to no avail. The Plaintiff says that in April 2023 a formal request was made to the Defendant to yield vacant possession of the disputed land, but to no avail.

8. The Plaintiff says that the Defendant's grandmother is the 1st wife of Azotiyine. The Plaintiff says that when Azotiyine distributed the lands as recited above, the Defendant's grandmother and her children (including the Defendant's father) got their own share of the lands which are separate and distinct from the disputed land.

9. The Plaintiff says that unless and until this Honourable Court intervenes to restore the disputed land into the possession of the Plaintiff's family, the Defendant has demonstrated every intention to continue her illegal and unlawful occupation of the disputed land. **T**he Plaintiff therefore prays the court for the above stated reliefs.

Defendant's Case

10. The defendant vehemently denies plaintiff's claims and says he is not entitled to his claims or any at all. The Defendant says that her grandfather (Azotiyine Anyeana – Deceased) during his lifetime gave the land in dispute to her somewhere in 2016 to put up her store and do business for her upkeep. The

Defendant says that her grandfather informed her that the Defendant's grandmother was his first wife and that was why he gave the portion of the land in dispute to the Defendant.

11. It is the Defendant's case that the portion of the land in dispute is by the road side and a personal property of her grandfather; and that her grandfather did not share it or given it to anybody. Defendant says her grandfather informed her to put up her store on the land and prepare documents to cover that portion of the land in dispute. The Defendant says she has followed the directives of her grandfather and prepared documents to cover that portion of the land in dispute.

12. Defendant says further that the land in dispute is a road buffer control by the Bolgatanga Municipal Assembly and that she obtained a building permit from the said Assembly.

13. It is the defendant's case that after she put her container on land given to her by her grandfather, the Plaintiff also came to build two stores on the adjoining portion of land for himself. Defendant says plaintiff was able to put up the stores on that portion after the person occupying that portion vacated as a result of intervention by her grandfather through the then Assembly man.

14. Defendant says that the Plaintiff asked her to vacate her portion of land in dispute after the death of her grandfather because the plaintiff said he wants to give the Defendant's portion of the land in dispute to his brother's son. The Defendant says that she does not understand the reason why her grandfather would give a portion of the land in dispute for her to put up a store and after the

death of her grandfather, her uncle/plaintiff in this matter wants to claim that portion of the land from her.

15. The defendant says that Plaintiff has no Power of Attorney to enable him sue on behalf of the household of Mbangama's family. It is also her case that plaintiff does not have any Letters of Administration in respect of the estate of Azotiyine Anyeana-(Deceased) as the Administrator or one of the Administrators to enable him administer the Estate of the late Azotiyine Anyeana-Deceased.

16. Defendant states that his elder Brother (Azotiyine Isaac) who started the action and his uncle/plaintiff (Ibrahim Azotiyine) just teamed up to frustrate her and not that they are the owners of the land in dispute. She therefore prays for plaintiff's action to be dismissed.

Burden of Proof

17. The obligations or duties of parties to lead evidence; and to persuade the court, as to the credibility of their allegations are covered both by statute and plethora of authorities. The law is that he who alleges must prove. Under sections 10, 11, 12 and 14 of the Evidence Act 1975 (NRCD 323) the burden of who has the responsibility to lead evidence is clearly set out. These are burdens of leading evidence and the burden of persuading a tribunal by leading credible evidence. Sections 11(1)(4) and 14 of the Evidence Act 1975 (NRCD 323) provides as follows:

11(1) For purposes of this Decree, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence.

14 Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting."

18. There are two parts to the duty to discharge the burden of proof. Thus, the twin burdens of proof and standard of proof contained in the provisions are: (a) There is the burden of leading evidence to back an assertion; and (b) the burden of persuasion i.e. leading evidence of sufficient standard to persuade a tribunal to rule in one's favour. **See the case of Isaac Alormenu vs. Ghana Cocoa Board, Civil Appeal No. J4/86/2022, delivered on 8th February 2023.**

19. In the case of **In re Ashalley Botwe Lands; Adjetey Agbosu & Ors v Kotey & Ors [2003-2004] SCGLR 420, at pp. 464-465**, Brobbey JSC explained the law on burden of proof thus:

"The effect of sections 11(1) and 14 and similar sections in the Evidence Decree, 1975 may be described as follows: A litigant who is a defendant in a civil case does not need to prove anything: the plaintiff who took the defendant to court has to prove what he claims he is entitled to from the defendant. At the same time, if

the court has to make a determination of a fact or of an issue, and that determination depends on evaluation of facts and evidence, the defendant must realize that the determination cannot be made on nothing. If the defendant desires the determination to be made in his favour, then he has the duty to help his own cause or case by adducing before the court such facts or evidence that will induce the determination to be made in his favour. The logical sequel to this is that if he leads no such facts or evidence, the court will be left with no choice but to evaluate the entire case on the basis of evidence before the court, which may turn out to be only the evidence of the plaintiff."

20. In **Ackah v Pergah Transport Ltd., 2010] SCGLR 728,** Sophia Adinyira JSC stated on the burden of proof at p.736 as follows:

"It is a basic principle of law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witness, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the minds the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable that its non-existence. This is a requirement of the law on evidence under Section 10(1) and (2) and 11(1) and (4) of the Evidence Act, 1975 (NRCD 323)".

21. Also, it is a settled principle of law that a bare assertion or merely repeating a party's pleadings in the witness box without more does not constitute proof. In

Klah V. Phoenix Insurance Co. Ltd [2012] 2 SCGLR 1139, this principle was reiterated:

"Where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the Witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true."

See also the following cases on the burden of proof: Air Namibia (Pty) Ltd. V. Micon Travel & Tour & 2 Ors, [2015] 91 G.M.J, page 177, Majolagbe v Larbi & others (1959) GLR 190-195 and Klutse v. Nelson [1965] GLR 537.

Evaluation of Evidence, Discussion of Issues and Legal Analysis

22. Plaintiff testified himself and called two (2) witnesses. The Defendant also testified herself and called two (2) witnesses. Neither did the 3rd witness of the defendant testify nor his witness statement adopted as hearsay evidence. Defendant tendered in evidence the following documents: The building permit from the Bolgatanga Municipal Assembly, together with a receipt and Proposed Temporary Steel Structure for Defendant as **Exhibits 1, 2, 3** respectively.

23. The counsel for plaintiff filed his submission on 07/04/2025 and submitted *inter alia* as follows that: the disputed and its adjourning land was shared and given to plaintiff's mother which is held by her for and on behalf of her household; that from the evidence of defendant it is impossible to say that the disputed land was given to the defendant to the knowledge of principal members of the family; that

in absence of such a publication of the purported customary gift of the disputed land to the defendant, plaintiff is deemed to have has discharged his burden of proof. He therefore submitted that plaintiff reliefs should be granted. The defendant also filed her submission on16/04/2025 though she is not a lawyer.

24. This court has examined the submissions filed by the counsel for plaintiff and defendant personally and considered them in this judgment.

25. The issues for determination in this case are: (a) **Whether or not Azotiyine (Plaintiff's father or Defendant's grandfather) gave the land in dispute to the defendant to put up her container on it temporarily. (b) Whether or not the land shared by Azotiyine among his three wives includes the land in dispute**. I will discuss these two issues together.

26. From the evidence, the plaintiff claims the defendant was given the place to put the container temporarily. It is the plaintiff case that the defendant was told to put the container on the disputed land up to such time when plaintiff's family need the place. Plaintiff claims that was said by Azotiyine to Azotiyine Isaac Ayine (Plaintiff's cousin), Azotiyine Robert (Plaintiff's elder brother) and Azotiyine Kofi (Plaintiff's younger brother). Indeed, Plaintiff stated in paragraphs 13, 17, 18, 19 and 20 of his statement of claim or subject matter of claim filed on 4th June, 2024 as follows:

In or around the year 2015, the Defendant approached the Plaintiff's father, Azotiyine, requesting for a portion of the disputed land to cite her metal container to start a business ….. The Plaintiff says that after the

request, Azotiyine informed some of his household members about the Defendant's request. The persons are: Azotiyine Isaac Ayine (Plaintiff's cousin), Azotiyine Robert (Plaintiff's elder brother) and Azotiyine Kofi (Plaintiff's younger brother). The Plaintiff says that Azotiyine had informed the persons supra that the Defendant was to occupy the disputed land until such a time the Plaintiff's family required the place for their own use. *The Plaintiff says that since the year 2022, several verbal requests were made to the Defendant to yield vacant possession of the disputed land to no avail. The Plaintiff says that in April 2023 a formal request was made to the Defendant to yield vacant possession of the disputed land, but to no avail.*

27. The plaintiff also testified in his evidence in chief as captured in paragraphs 10 and 11 of his witness statement filed on 08/07/2024 as follows:

"I say that the Defendant was given the disputed land to temporarily occupy same for purposes of doing her commercial business. I say that with the progress of time, it has become necessary for members of my family to utilize the spot that was temporarily given to the Defendant."

28. The defendant on the other hand claims she was not asked to put the container on the disputed land temporarily. She maintained through her statement of defence and evidence that the place was given to her by her grandfather without any conditions and that her grandfather did not tell her that plaintiff or someone will collect the place from her in the future.

29. Accordingly, this court found as a fact from the evidence of the parties that the plaintiff's father or the defendant's grandfather, Azotiyine gave the land in dispute to the Defendant to put her container on it. The law is that he who alleges must prove. A litigant who is a defendant in a civil case does not need to prove anything: the plaintiff who took the defendant to court has to prove what he claims he is entitled to from the defendant. **See the case of In re Ashalley Botwe Lands; Adjetey Agbosu & Ors v Kotey & Ors [2003-2004] SCGLR 420, supra**, per Brobbey JSC. The law is also that plaintiff must succeed on the strength of his own case and not on the weakness of the defendant's case, see **Odametey v Clocuh [1989-90] 1 GLR 14, SC.** Regarding proof of one's claim or allegation, the Supreme Court in the case **Okudzeto Ablakwa (No. 2) v. Attorney-General & Obetsebi-Lamptey (No. 2) [2012] 2 SCGLR 845 at page 867** held as follows: "*... if a person goes to court to make an allegation, the onus is on him to lead evidence to prove that allegation, unless the allegation is admitted. If he fails to do that, the ruling on that allegation will go against him. Stated more explicitly, a party cannot win a case in court if the case is based on an allegation which he fails to prove or establish*." **See section 17 of the Evidence Act, 1975 (NRCD 323).**

30. It is the plaintiff who brought defendant to court and has the burden to convince the court that the disputed land was given to the defendant temporarily to put her container on it. It is only after this burden is discharged that the burden will then shift to the defendant to prove her case. See **section 14 of the Evidence** Act *supra.* The plaintiff claims Azotiyine (plaintiff's father or defendant's grandfather) informed Azotiyine Isaac Ayine (Plaintiff's cousin), Azotiyine Robert (Plaintiff's elder brother) and Azotiyine Kofi (Plaintiff's younger brother) that "*the Defendant was to occupy the disputed land until such a time the Plaintiff's*

family required the place for their own use." The plaintiff did not call any of these persons who Azotiyine allegedly told that the defendant was to put her container on the land temporarily. To this court, Azotiyine Isaac Ayine (Plaintiff's cousin), Azotiyine Robert (Plaintiff's elder brother) and Azotiyine Kofi (Plaintiff's younger brother) are material witnesses for plaintiff to confirm the fact that Azotiyine told them that the Defendant was to occupy the disputed land until such a time the Plaintiff's family required the place for their own use. Under the English Common Law, a witness whose evidence is likely to be sufficiently important to influence the outcome of a trial is a material witness who must be invited to assist the court. Therefore, the failure of the plaintiff in the instant case to call those material witnesses is fatal to plaintiff's case. See the cases of **William Mensah Vs. Mutala Lamidi & Isaac Mamaa Darpoh [2023] DLCA17744**; R v Ansere [1958] 2 WALR 385; and Ogbarmey-Te eh v Ogbarmey-Te eh [1993-94] 1 GLR 353 SC. The result is that plaintiff has failed to convince this court that the defendant was given the disputed land by her grandfather, Azotiyine to put her container on the said land temporarily.

31. Moreover, it is worthy of note that even though plaintiff claims in his statement of claim or subject matter of claim that Azotiyine gave the disputed land to the defendant to put her container on it temporarily, during cross examination by defendant he testified that Azotiyine did not give the disputed land to the defendant. Thus, during cross examination of Plaintiff by Defendant on 13th January, 2025, the following transpired:

Q. Are you aware I am a granddaughter of Azotiyine Anyeana*?*

A. She is Azotiyine's granddaughter.

Q. Where is Azotiyine currently?

A. He is deceased.

Q. The land is dispute where is it located?

A. Zorbisi.

Q. Can you describe the location of the land in dispute?

A. I can tell the boundaries if we go to the land.

Q. Are you aware the land was given to me by my grandfather [Azotiyine]?

A. My …father [Azotiyine] did not give that portion of land to you, you rather came to us and pleaded for that portion to put your container and anytime we needed our land you give it back to us.

Q. I am putting it to you that my grandfather [Azotiyine] gave me the land to put up my container?

A. That is not true.

32. Also, **PW1 – Abaa Atitogum** testified that the Defendant used force to put her container on the land in dispute. He claims defendant removed plaintiff's container and put her container instead. Thus, during cross examination of PW1 – Abaa Atitogum on 7th October, 2024, the following transpired:

Q. I put it to you that I obtained permit from the Assembly before putting my container on the land?

A.I have heard you. The Plaintiff container was already there with the permission from the Assembly but you forced him to take his container away. And you have now put your container there.

Q. Who gave the said land in dispute to me?

A. Nobody gave it to you. You only used your strength to collect it.

Q. I put it to you that it is not true that I forcibly put the container on the land?

A. I am being truthful *because you came to me asking me to tell the Plaintiff to let you also put your container there and I told you to exercise patience because you have a place somewhere.*

33. Under **section 80 of the Evidence Act, 1975 (NRCD 323)**, matters which the court may take into consideration in determining the credibility of a witness include a statement or conduct which is consistent or inconsistent with the testimony of the witness at the trial. The law is well settled that a person whose evidence on oath is contradictory of a previous statement made by him, whether sworn or unsworn, is not worthy of credit. Thus, in the case of **Odupong v Republic [1992-93] GBR 1038** the Court of Appeal held on this principle as follows:-

"The law was well settled that a person whose evidence on oath was contradictory of a previous statement made by him, whether sworn or unsworn, was not worthy of credit and his evidence would be of no probative value unless he gave a

reasonable explanation for the contradiction." See also Gyabaah v Republic [1984-86] 2 GLR 416 and Kuo-den alias Sobti v Republic [1989-90] 2 GLR 203 SC were referred to

34. The inconsistencies in Plaintiff's subject matter of claim and plaintiff's and PW1's evidence during cross examination by defendant lead to the irresistible conclusion that Plaintiff is not a credible person and his evidence is to be taken with a pinch of salt.

35. It must be noted that a person cannot share family property among his wives and children except his personal property. PW1-Abaa Atitogum, testified that his uncle, Azotiyine inherited lands in different locations within the community in his lifetime. He testified that Azotiyine shared his lands among his three wives for each household to cultivate same for subsistence. To this court, after inheriting the said lands they became his personal properties. If the lands were not the personal lands of Azotiyine, he would not have shared them among his three wives as claimed by the plaintiff. I therefore found as a fact that the land in dispute was a personal property of Azotiyine. Indeed, PW2 – Mohammed Agwene under cross examination of defendant on 2nd December, 2024, the following transpired:

Q. Do you know the land in dispute?

A. Yes.

Q. Where is the land located?

A. Zorbisi around** new life **line.

Q. Who is the owner of the said land?

A. Baba Azotiyine.

Q. Where is he now?

A. He is deceased.

36. Plaintiff claims Azotiyine shared his lands among his three wives including the land in dispute. Defendant on the other hand claims the land in dispute and its adjoining ones were not shared but rented or given out to people for commercial purpose by Azotiyine during his lifetime. From the evidence, the defendant's grandfather, Azotiyine died in 2021. Defendant was put in possession of the disputed land in 2016 but till the defendant's grandfather died in 2021, there is no evidence before this court that plaintiff and his household challenged defendant's occupation of the said land. This court is of the view that if the land in dispute belongs to the plaintiff's mother and her household as he claims, they would have challenged the defendant during the life time of their father or defendant's grandfather, Azotiyine and not to wait till Azotiyine died. The inference that could be drawn is that the disputed land is not part of the one given to plaintiff's mother and her children. This court is of the opinion that Azotiyine gave the defendant the disputed land to put her container on it as his granddaughter without any conditions or for life. This court therefore holds that the defendant is not occupying the land in dispute unlawfully or illegally as the

plaintiff wants this court to believe. The court also holds that plaintiff claims for the land in dispute is an afterthought and that the action was brought in bad faith.

37. Be that as it may, the court also found that place in dispute is a buffer zone which is under the control of the Bolgatanga Municipal Assembly. It is noteworthy that Municipal or District Assemblies are mandated by law to regulate putting up of structures by given out building permit as well as prohibit putting up of structures that do not conform to approve plan for the area in issue. Any person who fails to obtain a permit before putting up a building or put up a structure contrary to the approved plan for the area will face the consequences of his or her action. See **sections 91 and 94 of the Local Governance Act, 2016 (Act 936) and sections 113 and 117, 118, 119 and 121 of the Land Use and Spatial Planning Act, 2016 (Act 925).**

38. In the instant case, the Assembly has granted permit to the defendant to put a container on the buffer zone or the disputed land, see **Exhibit 1**. On 7th October, 2024, during cross examination of PW1-Abaa Atitogum, the following transpired:

Q. Can you tell the court the distance between my container and the Bolga-Navrongo road?

A. I cannot tell.

Q. I am putting it to you that the distance between my container and the road is about 10 meters?

A. I cannot tell.

Q. ***And all the space lying before the road is now a buffer zone?***

A. It is our land that the government has demarcated as a buffer zone.

Q. And it is only the Municipal Assembly which can give you permit to put up a temporal structure there?

A. The Plaintiff container was already on that land with permission of the Assembly and you have come to forcibly take over.

Q. I put it to you that I obtained permit from the Assembly before putting my container on the land?

A.I have heard you. The Plaintiff container was already there with the permission from the Assembly but you forced him take his container away. And you have now put your container there.

39. It is for the forgoing reasons that this court is of the considered opinion that plaintiff action lacks merit and it is hereby dismissed.

Conclusion

40. Having examined the whole evidence adduced by the plaintiff and the defendant on record in accordance with the foregoing authorities as well as the analysis, the court holds that:

a. Plaintiff's action fails and it is accordingly dismissed. Thus, plaintiff has failed to prove to the satisfaction of this court that the defendant was given the land in dispute by Azotiyine (plaintiff's father or defendant's grandfather) to put up her container on it temporarily or that the disputed land forms part of the plaintiff's mother's share of Azotiyine lands he distributed among his three wives. In other words, the plaintiff has failed to establish the existence of the facts contained in his claim by the preponderance of the probabilities.

b. Since the Defendant is in possession or occupation of the land in dispute, there is no need to make an order for recovery of possession.

c. The Plaintiff, his customary successors, assigns, privies, agents, workmen and all those claiming through him is/are perpetually restrained from interfering with the defendant's ownership, possession and use of the land in dispute.

d. Since the parties are relatives, there will be no order as to costs. The parties are to bear their respective costs incurred in pursuing this matter.

(SGD.)

H/W MAWUKOENYA NUTEKPOR

(DISTRICT MAGISTRATE)